

廉 洁 协 议

Anti-Corruption Agreement

甲方（采购方）：安胜矿产有限公司

乙方（供应商）：PLANET DRC CORPORATION SARL

Party A (Purchaser): EXCELLEN MINERALS SARL

Party B (Supplier): PLANET DRC CORPORATION SARL

为促进甲乙双方廉洁高效合作，防止各种不正当行为的发生，促使双方工作人员廉洁从业，按照《中华人民共和国民法典》、《中华人民共和国反不正当竞争法》、《关于禁止商业贿赂行为的暂行规定》和国家其他相关法律法规关于廉政建设的相关规定，经甲乙双方协商一致，自愿签订如下廉洁协议：

In order to promote clean and efficient cooperation between both parties, prevent the occurrence of various undue behaviors, and to promote an ethical and uncorrupted work environment for the staff members of both parties, Party A and Party B have reached a consensus and voluntarily enter the following anti-corruption agreement in accordance with *The Civil Code of the People's Republic of China, The Anti-Unfair Competition Law of the People's Republic of China, Interim Provisions on Banning Commercial Bribery* and other relevant national laws and regulations on the construction of clean governance:

一、双方应当自觉遵守国家和地方关于公平交易、廉洁自律、反腐败的各项规定。

1. Both parties shall readily abide by state and local regulations on fair trade, ethical self-discipline, and anti-corruption.

二、甲方及其工作人员不得以任何形式向乙方索要和收受回扣等好处。

2. Party A and its staff members shall not solicit or accept any kickbacks and other benefits, in any form, from Party B.

三、甲方工作人员应当保持与乙方的正常业务交往，不得接受乙方的礼金、有价证券和贵重物品，不得在乙方处报销任何应由个人支付的费用。

3. Party A's staff members shall maintain normal business contact with Party B's, shall not accept Party B's gift money, securities, and valuables, and shall not reimburse any expenditures that Party B bears the responsibility of.

四、甲方工作人员不得参加可能对公正执行职务有影响的宴请和娱乐活动。

4. Party A's staff members shall not participate in dining and entertainment activities that may affect the fair performance of their duties.

五、甲方工作人员不得要求或者接受乙方为其住房装修、婚丧嫁娶、家属和子女的工作安排以及出国等提供方便。

5. Party A's staff members shall not demand or accept from Party B any payment for their housing, décor, weddings, funerals, work arrangements, or overseas travel for their family members or their children.

六、甲方工作人员不得向乙方介绍家属或者亲友从事与甲方采购有关材料、设备供应、提供相关服务等经济活动。

6. Party A's staff members shall not introduce their family members or relatives to Party B, in order to engage in economic activities such as the supply of materials and equipment, or the provision of relevant services related to Party A's procurement.

七、乙方应当通过正常途径开展相对业务工作，不得为获取某些不正当利益而向甲方工作人员赠送礼金、有价证券和贵重物品等。

7. Party B shall carry out relative business through normal channels, and shall not offer to Party A's staff members gifts, securities and valuables for the sake of obtaining certain improper benefits.

八、乙方不得为谋取私利擅自与甲方工作人员就双方合同洽谈、签订及履行过程中的相关问题的处理进行私下商谈或者达成默契。

8. Party B shall not negotiate privately or reach a tacit agreement with Party A's staff members on the handling of relevant issues in the process of negotiation, signing, and execution of the contract.

九、乙方不得以洽谈业务、签订合同为借口，邀请甲方工作人员外出旅游或/和进入营业性高档娱乐场所。

9. Party B shall not, in the excuse of business negotiation and contract signing, invite Party A's staff members to travel and/or to enter the premises of high-end commercial entertainment venues.

十、乙方不得为甲方单位、个人购置或提供通讯工具、交通工具、家电、高档办公用品等物品。

10. Party B shall not purchase or provide communication tools, transport means, household appliances, high-end office supplies, or other items for Party A's organization or employees.

十一、乙方不得与甲方单位或个人及其亲友间进行任何形式之借贷、租赁、投资及任何非直接工作往来的活动。

11. Party B shall not engage in any form of loan, lease, investment, or any non-direct business activities with Party A's organization, employees, or employee's relatives and friends.

十二、乙方如发现甲方工作人员在日常业务过程中有任何索贿行为，乙方必须立即拒绝，并向甲方单位举报。若乙方对甲方人员的索贿行为不拒绝、不举报，并满足其要求的，则该行为视同乙方的贿赂行为，乙方应当承担相应的责任。甲方不得以任何借口对乙方的举报行为进行报复。甲方对举报属实和严格遵守廉洁协议的乙方，在同等条件下优先列入甲方合格供应商名录。

12. If Party B finds Party A's staff members have performed any act of soliciting bribery in the routine business process, Party B must immediately reject the act and report it to Party A. If Party B does not reject or report the act, and goes on to meet the demands thereof, it shall be deemed as an act of offering bribery by Party B, and Party B shall bear the corresponding liabilities. Party A shall not retaliate against Party B for any bribery reports. Party A shall, under equal conditions, offer priority to Party B, and place them on Party A's list of qualified suppliers (if the report by Party B is true and if they strictly abide by the integrity agreement).

十三、甲方发现乙方有违反本协议或者采用不正当的手段行贿甲方工作人员行为的，甲方根据具体情节和造成的后果，将有权：①将乙方列为不合格供应商并不再与乙方开展任何形式的合作；②立即终止与乙方签订的尚未履行完毕的合同；③要求乙方按双方签订的

合同总金额的 1-5% 的向甲方支付违约金；④如由此给甲方造成其他损失的均由乙方全部承担；⑤乙方用不正当手段获取的非法所得由甲方予以追缴；⑥对涉及的相关人员，由甲方移送有关主管部门按有关规定进行查处。

13. If Party A finds that Party B violates this agreement or offer bribes to Party A's staff members by improper means, Party A shall, according to specific circumstances and the consequences as incurred therefrom, have the right to:

- ① Enlist Party B as an unqualified supplier and no longer carry out any form of cooperation with Party B;
- ② immediately terminate the unfinished contract signed with Party B;
- ③ require Party B to comply with the signed contract and pay 1% to 5% of the total contract amount as liquidated damages to Party A;
- ④ require Party B to bear all liabilities to losses incurred to Party A;
- ⑤ retrieve by Party A any illegal gains as obtained with improper means by Party B;
- ⑥ transfer relevant personnel, employed by Party A, to the appropriate departments for investigation and punishment according to regulations.

十四、本《廉洁协议》作为甲乙双方签订的采购合同的有效附件，并与采购合同具有同等法律效力。

14. This anti-corruption agreement is an effective annex to the purchase contract as signed by Party A and Party B, and it bears the same legal effect as the purchase contract.

十五、双方采购业务关系变更或解除，不影响甲方按本协议约定向乙方追究责任及要求赔偿损失的权利。

15. The alternation or termination of the purchasing business relationship between both parties shall not affect Party A's right, in accordance with this agreement, to investigate the responsibility and claim compensation from Party B.

十六、本协议一式肆份，甲、乙双方各执贰份。

16. This agreement is made in quadruplicate, two for each party.

十七、举报方式：如发现甲方人员有任何不廉洁行为，请发送举报信息至：
audit@shjayson.com。

17. Method of reporting: If Party A's personnel are suspected of corrupted behavior, please send the report information to: audit@shjayson.com.

(以下无正文 **No text hereinbelow**)

甲方(盖章):

乙方(盖章):

法定代表人或授权代表(签字):

法定代表人或授权代表(签字):

Party A (seal):

Party B (seal)

Legal representative or

Legal representative or

authorized representative (signature):

authorized representative (signature):

日期: 年 月 日

日期: 年 月 日

Date: MM / DD / YYYY

Date: MM / DD / YYYY

